

Opinion of the Court

whole is often greater than the sum of its parts—especially when the parts are viewed in isolation. See *United States v. Arvizu*, 534 U.S. 266, 277–278 (2002). Instead of considering the facts as a whole, the panel majority took them one by one. For example, it dismissed the fact that the partygoers “scattered or hid when the police entered the house” because that fact was “not sufficient *standing alone* to create probable cause.” 765 F.3d, at 23 (emphasis added). Similarly, it found “nothing in the record suggesting that the condition of the house, *on its own*, should have alerted the [partygoers] that they were unwelcome.” *Ibid.* (emphasis added). The totality-of-the-circumstances test “precludes this sort of divide-and-conquer analysis.” *Arvizu*, 534 U.S., at 274.

Second, the panel majority mistakenly believed that it could dismiss outright any circumstances that were “susceptible of innocent explanation.” *Id.*, at 277. For example, the panel majority brushed aside the drinking and the lap dances as “consistent with” the partygoers’ explanation that they were having a bachelor party. 765 F.3d, at 23. And it similarly dismissed the condition of the house as “entirely consistent with” Peaches being a “new tenant.” *Ibid.* But probable cause does not require officers to rule out a suspect’s innocent explanation for suspicious facts. As we have explained, “the relevant inquiry is not whether particular conduct is ‘innocent’ or ‘guilty,’ but the degree of suspicion that attaches to particular types of noncriminal acts.” *Gates*, 462 U.S., at 244, n. 13. Thus, the panel majority should have asked whether a reasonable officer could conclude—considering all of the surrounding circumstances, including the plausibility of the explanation itself—that there was a “substantial chance of criminal activity.” *Ibid.*

The circumstances here certainly suggested criminal activity. As explained, the officers found a group of people who claimed to be having a bachelor party with no bachelor, in a near-empty house, with strippers in the living room and sexual activity in the bedroom, and who fled at the first sign